

Amendment No. 1 to HB1129

Howell
Signature of Sponsor

AMEND Senate Bill No. 915*

House Bill No. 1129

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 54-1-128, is amended by adding the following as a new subsection:

(e) Notwithstanding this section, the restrictions on borrow pits under subdivisions (b)(1)(A),(D) and (E) do not apply to temporary borrow pits used for a road work construction project performed in a FEMA-certified county under a contract for construction work entered into with the state that is part of a state or local Hurricane Helene recovery effort. For purposes of this subsection (e), "FEMA-certified county" means a county included in a declaration made on or after September 26, 2024, and prior to October 3, 2024, for a disaster certified by the federal emergency management agency (FEMA). Notwithstanding another law to the contrary, this subsection (e) expires on June 30, 2039.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.